



CHAPTER ii.

An Act to confirm a Scheme made by the Minister of Health under the Public Works Facilities Act 1930 relating to the Torquay Corporation. A.D. 1933.
[29th March 1933.]

WHEREAS under the provisions of the Public Works Facilities Act 1930 the Minister of Health has made a Scheme which needs confirmation by Parliament: 20 & 21
Geo. 5. c. 50.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Scheme of the Minister of Health which is set out in the schedule to this Act is hereby confirmed and shall have full validity and force. Scheme in schedule confirmed.

2. This Act may be cited as the Public Works Facilities Scheme (Torquay Corporation) Confirmation Act 1933. Short title.

A.D. 1933.

S C H E D U L E.

TORQUAY CORPORATION (WATER).

*Torquay
Corporation
(Water)
Scheme.*

Scheme under the Public Works Facilities Act 1930 empowering the mayor aldermen and burgesses of the borough of Torquay to construct waterworks and for other purposes.

WHEREAS the mayor aldermen and burgesses of the borough of Torquay (hereinafter called "the Corporation") are desirous of providing constructing and carrying out the works described in this Scheme;

And whereas the powers contained in this Scheme are required by the Corporation for the purpose of enabling them to execute those works or are incidental or consequential provisions necessary for giving full effect to the Scheme;

And whereas estimates have been prepared by the Corporation for the purposes hereinafter mentioned and such estimates are as follows:—

(a) For the purchase of lands for and in connection with the construction of the works by this Scheme authorised	£
- - - - -	964
(b) For the construction of the works by this Scheme authorised	- - - - -
- - - - -	19,882

And whereas the Minister of Health is satisfied—

- (a) that the works will materially contribute to the relief of unemployment; and
- (b) that the relief to unemployment will be materially expedited by reason of the powers being conferred by this Scheme instead of by a local Act; and
- (c) that the powers conferred by this Scheme are such as are customarily conferred on local authorities by local Acts; and
- (d) that the powers so conferred will not enable the Corporation to undertake functions of a different nature from those already within their statutory powers:

Now therefore the Minister of Health in pursuance of the powers given to him by section 1 of the Public Works Facilities

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Act 1930 and of all other powers enabling him in that behalf hereby makes the following Scheme :—

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 —
Torquay Corporation (Water) Scheme.

PART I.
 PRELIMINARY.

1. This Scheme may be cited as the Torquay Corporation (Water) Scheme 1933. Short title.

2. This Scheme shall come into force and have effect upon the day when the Act confirming this Scheme is passed which date is in this Scheme referred to as "the commencement of this Scheme." Commencement of Scheme.

3. This Scheme is divided into Parts as follows (namely) :— Division into Parts.

Part I.—Preliminary.

Part II.—Works.

Part III.—Lands.

Part IV.—Financial and Miscellaneous.

4. The following Acts and parts of Acts so far as the same are applicable for the purposes of and are not varied by or inconsistent with the provisions of this Scheme are incorporated with and form part of this Scheme (that is to say) :— Incorporation of Acts.

(i) The Lands Clauses Acts with the following exceptions and modifications :—

(a) Sections 92 and 127 to 132 inclusive of the Lands Clauses Consolidation Act 1845 (relating to the sale of superfluous lands) are not incorporated with this Scheme ;

(b) The bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be sufficient without the addition of the sureties mentioned in that section ;

(c) In lieu of section 92 of the Lands Clauses Consolidation Act 1845 the following provision shall have effect :—

No person shall be required to sell a part only of any house building or manufactory or of any land which forms part of a park or garden belonging to a house if he is willing and able to sell the whole of the house building manufactory park or garden unless the arbitrator determines that in the case of a house building or manufactory such part as is proposed to be taken can be taken without material

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detriment to the house building or manufactory or in the case of a park or garden that such part as aforesaid can be taken without seriously affecting the amenity or convenience of the house and if he so determines he may award compensation in respect of the severance of the part so proposed to be taken in addition to the value of that part and thereupon the person interested shall be required to sell to the local authority or statutory undertakers that part of the house building manufactory park or garden;

- (ii) The provisions of the Waterworks Clauses Act 1847 with respect to the construction of works the breaking up of streets for the purpose of laying pipes and the fouling of water;
- (iii) Sections 77 to 85 of the Railways Clauses Act and the provisions of that Act with respect to the temporary occupation of lands near the railway during the construction thereof Provided that in construing such provisions for the purposes of this Scheme the expression "the railway" shall mean the works by this Scheme authorised the expression "the centre of the railway" shall mean the centre line of such works and the expression "the Company" shall mean the Corporation.

Interpreta-
 tion.

5. In this Scheme unless there be something in the subject or context repugnant to such construction the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings and—

- "The borough" means the borough of Torquay;
- "The Corporation" means the mayor aldermen and burgesses of the borough;
- "The Lands Clauses Acts" means the Lands Clauses Acts as varied by the Acquisition of Land (Assessment of Compensation) Act 1919;
- "Deposited plans" "deposited sections" and "deposited book of reference" mean respectively the plans sections and book of reference deposited for the purposes of this Scheme with the clerk to the county council of the administrative county of Devon;
- "Street" has the meaning assigned to that term in the Public Health Act 1875 and the Acts amending the same;
- "The Act of 1903" "the Act of 1922" and "the Act of 1927" mean respectively the Torquay Corporation

Water Act 1903 the Torquay Corporation (Electricity) A.D. 1933.
 Act 1922 and the Torquay Corporation Act 1927;

“The revenues of the Corporation” means and includes the
 revenues of the Corporation from time to time arising
 from any land undertakings or other property for the
 time being of the Corporation and the rates or con-
 tributions leviable by or on the order or precept of the
 Corporation.

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PART II.

WORKS.

6. The Corporation may subject to the provisions of this Scheme and in the lines and situations and within the limits of deviation shown on the deposited plans and according to the levels shown on the deposited sections construct and maintain the works in the county of Devon hereinafter described (that is to say) :—

Power to
 construct
 works.

Work No. 1 A line of pipes commencing by a junction with the existing main of the Corporation at Keyberry Park Road in the parish of Wolborough in the urban district of Newton Abbot and passing through the said district the parish of Abbotskerswell in the rural district of Newton Abbot and the parish of Marldon in the rural district of Totnes and terminating in the intended service reservoir Work No. 2 at Gallows Gate in the parish of Kingskerswell in the rural district of Newton Abbot.

Work No. 2 A service reservoir in the parish of Kingskerswell in the said rural district of Newton Abbot situate in the enclosure numbered 1 on the 1/2500 Ordnance map Devonshire sheet CXV—12 second edition 1906.

Work No. 3 A line of pipes commencing in Work No. 2 and terminating in the existing Cockington service reservoir of the Corporation in the parish and borough of Torquay.

Work No. 4 A line of pipes commencing in Work No. 2 and terminating at a point known as Nut Bush Corner in the parish and borough of Torquay.

Work No. 8 A service reservoir in the parish of Coffinswell in the said rural district of Newton Abbot situate in the enclosure numbered 10 on the 1/2500 Ordnance map Devonshire sheet CXVI—1 second edition 1906.

7. Subject to the provisions of this Scheme the Corporation may in constructing the works authorised by this Scheme deviate

Power to
 deviate.

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A.D. 1933. laterally to any extent within the limits of lateral deviation
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Torquay Corporation (Water) Scheme. shown on the deposited plans and where on any road no such limits are shown the boundaries of such road shall be deemed to be such limits and they may deviate from the levels shown on the deposited sections to any extent not exceeding three feet.

Subsidiary works. 8.—(1) In addition to the works hereinbefore described the Corporation subject to the provisions of this Scheme may upon any lands delineated on the deposited plans make and maintain all such buildings machinery works and apparatus of whatever character as may be necessary or convenient in connection with or subsidiary to any of the said works but nothing in this section shall exonerate the Corporation from any action indictment or other proceeding for nuisance in the event of any nuisance being caused or permitted by them.

(2) Any electric works and apparatus constructed made and maintained under this Scheme shall be so constructed used and maintained as to prevent any interference with any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster General or with telegraphic communication by means of any such line.

Power to break up stop up or interfere temporarily with streets. 9.—(1) The Corporation for the purposes of this Scheme and during the execution of the works by this Scheme authorised may break up and also temporarily stop up or interfere with alter or divert all or any part of any street and may cause to be put up sufficient palisades hoardings and other erections and may construct temporary works for keeping any such street open for traffic.

(2) The Corporation shall provide reasonable access for all persons bonâ fide going to or returning from any house in any such street and shall in each case do as little damage as possible and shall make reasonable compensation to all persons injuriously affected by the exercise of the powers of this section the amount of compensation to be settled in case of difference by arbitration in accordance with the provisions of the Arbitration Act 1889.

Discharge of water into streams. 10.—(1) For the purpose of constructing enlarging extending repairing cleansing emptying or examining any work by this Scheme authorised the Corporation may cause the water in any such work to be discharged into any available stream or watercourse Provided that any water so discharged shall so far as may be reasonably practicable be free from mud or silt or offensive matter and from matter injurious to fish or spawn or spawning beds or food of fish.

(2) In the exercise of the powers conferred by this section the Corporation shall do as little damage as may be and shall make full compensation to all persons interested for all damage sustained by them by reason or in consequence of the exercise of

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such powers the amount of compensation to be settled in case of difference by arbitration in accordance with the provisions of the Arbitration Act 1889.

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(3) The powers conferred by this section shall not be exercised so as to damage or injuriously affect the railways or works of the Great Western Railway Company.

11. If the works authorised by this Scheme be not completed within three years from the commencement of this Scheme then on the expiration of that period the powers of the Corporation for the construction thereof shall cease except so far as the same shall have been completed.

Period for completion of works.

12. Subject to the provisions of this Scheme the works to be constructed by the Corporation under the authority of this Scheme shall for all purposes be deemed to be part of the water undertaking of the Corporation.

Works to form part of water undertaking.

PART III.

LANDS.

13. Subject to the provisions of this Scheme the Corporation may enter upon take and use all or any of the lands shown on the deposited plans and described in the deposited book of reference which they may respectively require for the purposes of the works by this Scheme authorised.

Power to take lands.

14. In addition to the other lands which the Corporation are by this Scheme authorised to purchase and acquire they may purchase take on lease or acquire by agreement and may hold for the purposes of this Scheme any lands not exceeding one acre or any rights or easements therein Provided that nothing in this Scheme shall exonerate the Corporation from any indictment action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them on any lands purchased or used by them under the provisions of this section.

Purchase of lands by agreement.

15. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may (if they think fit) subject to the provisions of those Acts and of this Scheme grant to the Corporation any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Scheme in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Persons under disability may grant easements &c.

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As to private rights of way over lands taken compulsorily.

Compensation in cases of recently altered buildings.

Corporation may acquire easements only in certain cases.

Agreements with owners of property.

16. All private rights of way over any lands which shall under the powers of this Scheme be acquired compulsorily shall as from the date of their acquisition be extinguished. Provided that the Corporation shall make full compensation to all parties interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

17. In settling any question of disputed purchase-money or compensation under this Scheme the tribunal settling the same shall not award any sum of money for or in respect of any improvement alteration or building made or for or in respect of any interest in lands created after the first day of February one thousand nine hundred and thirty-two if in the opinion of such tribunal the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Scheme.

18.—(1) The Corporation may in lieu of acquiring any lands for the purposes of the works authorised by this Scheme where the same are intended to be constructed underground acquire such easements only in such lands as they may require for such purposes and may give notice to treat in respect of such easements describing the nature thereof and the provisions of the Lands Clauses Acts shall apply to and in respect of the acquisition of such easements as fully as if the same were lands within the meaning of those Acts.

(2) As regards any lands in respect of which the Corporation have acquired easements only under the provisions of this section the Corporation shall not be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being shall subject to such easements have the same rights to use and cultivate the said lands at all times as if this Scheme had not come into force.

(3) Every notice to treat for the acquisition of an easement shall either contain or be endorsed with notice of this provision.

(4) Nothing in this section contained shall authorise the Corporation to acquire by compulsion any such easement in any case in which the owner in his particulars of claim shall require the Corporation to acquire the lands in respect of which they have given notice to treat for the acquisition of an easement only and every notice to treat for the acquisition of an easement shall either contain or be endorsed with notice of this provision.

19. Subject to the provisions of this Scheme the Corporation may enter into and carry into effect agreements with any owners of property or other persons interested in any lands or property shown or partly shown on the deposited plans with respect to the

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purchase by the Corporation of any such lands or property or any rights or easements in or affecting the same for such consideration being a sum of money in gross or a grant of land or partly money and partly land as may be agreed between the Corporation and such owners or other persons.

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20. The powers of the Corporation for the compulsory purchase or taking of lands for the purposes of this Scheme shall cease after the expiration of two years from the first day of April nineteen hundred and thirty-three.

Period for compulsory purchase of lands.

PART IV.

FINANCIAL AND MISCELLANEOUS.

21.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and in order to secure the repayment thereof and the payment of interest thereon they may mortgage or charge the revenues of the Corporation and they shall pay off all moneys so borrowed within the respective periods mentioned in the third column of the said table (which periods shall be the prescribed periods for the purposes of section 39 of the Act of 1927) (namely) :—

Power to borrow.

1	2	3
Purpose.	Amount.	Period of Repayment.
(a) For and in connection with the works by this Scheme authorised.	£ 19,882	Thirty years from the date or dates of borrowing.
(b) For and in connection with the purchase of lands and easements under this Scheme.	964	Sixty years from the date or dates of borrowing.
(c) For paying the costs charges and expenses of this Scheme.	The sum requisite	Five years from the commencement of this Scheme.

(2) (a) The Corporation may also with the consent of the Minister of Health borrow such further money as may be necessary for any of the purposes of this Scheme.

(b) In order to secure the repayment of any money borrowed under this subsection and the payment of the interest thereon the Corporation may mortgage or charge the revenues of the Corporation.

(c) Any money borrowed under this subsection shall be repaid within such period as may be prescribed by the Minister of Health and that period shall be the prescribed period for the purposes of Section 39 of the Act of 1927.

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Application
of provisions
of Acts of
1903 and
1922.

22. The following provisions of the Act of 1903 and the Act of 1922 shall with any necessary alterations or modifications and subject to the provisions of this Scheme extend and apply for the purposes of this Scheme as if the same were re-enacted herein (namely) :—

The Act of 1903—

- Section 61 (Corporation not to regard trusts).
- Section 63 (Mode of paying off of money borrowed).
- Section 65 (Saving for existing charges).
- Section 68 (Application of borrowed moneys).
- Section 77 (Inquiries by Local Government Board) with the substitution of the word “five” for the word “three” in subsection (2) of that section.

The Act of 1922—

- Section 15 (Protection of lender from inquiry).

Application of
provisions of
Telegraph Act
1878.

23. When confirmed by Parliament this Scheme shall for the purposes of the Telegraph Act 1878 be deemed to be an Order confirmed by Act of Parliament.

Costs of
Scheme.

24. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and confirming of this Scheme as taxed by the taxing office of the House of Lords or of the House of Commons shall be paid by the Corporation out of the general rate fund or the revenues of the water undertaking of the Corporation or out of moneys to be borrowed for the purpose.

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